

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIRST SECTION

DECISION

Application no. 5588/04
Igbal Fehruz Oglu AGHAZADE
against Azerbaijan

The European Court of Human Rights (First Section), sitting on 12 June 2012 as a Committee composed of:

Peer Lorenzen, *President,*
Khanlar Hajiyev,
Julia Laffranque, *judges,*

and André Wampach, *Deputy Section Registrar,*

Having regard to the above application lodged on 16 January 2004,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Igbal Fehruz oglu Aghazade, is an Azerbaijani national, who was born in 1968 and lives in Baku.

The Azerbaijani Government ("the Government") were represented by their Agent, Mr Ç. Asgarov.

The applicant complained, *inter alia*, that he had been ill-treated during arrest and in police custody in breach of Article 3 of the Convention and that his arrest and conviction for having allegedly organised a public disorder during an unauthorised demonstration had infringed his rights under Articles 10 and 11 of the Convention.

The applicant's complaints were communicated to the Government, who submitted their observations on the admissibility and merits. The observations were forwarded to the applicant, who was invited to submit his own observations. No reply was received to the Registry's letter.

By letter dated 12 May 2010, sent by registered post, the applicant was notified that the period allowed for submission of his observations had expired on 29 March 2010 and that no extension of time had been requested. The applicant's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike a case out of its list of cases where the circumstances lead to the conclusion that the applicant does not intend to pursue the application. The applicant received this letter on 22 May 2010. However, no response has been received.

THE LAW

The Court considers that, in these circumstances, the applicant may be regarded as no longer wishing to pursue his application, within the meaning of Article 37 § 1 (a) of the Convention. Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and its Protocols which require the continued examination of the case.

In view of the above, it is appropriate to strike the case out of the list.

For these reasons, the Court unanimously

Decides to strike the application out of its list of cases.

André Wampach
Deputy Registrar

Peer Lorenzen
President